Her Name is Kathy

By Donna de Matteo

INTRODUCTION

Abortion was criminalized throughout the U.S. between the late 1800s and 1973. But during that time, millions of women sought and obtained abortions anyway.

Of these, tens upon tens of thousands died from illegal abortions or complications arising from them. One study estimated that illegal abortions or complications from them were the cause of death for 15,000 women each year. Some of these deaths were the result of the abortions themselves, but many more were from infection and hemorrhaging afterward. Because of the fear of being punished and socially ostracized, many women--and their doctors--kept their real condition a secret.

Today, the degree to which abortion is available in the U.S. is an open question. 87 percent of all U.S. counties don't have an abortion provider. Which leads to the question . . . How many women still suffer at the hands of "back-alley" abortion providers? Her Name is Kathy by Donna de Matteo

Time: A hot summer night in August. The year is 1957. The time is 10 PM.

[BILLY LOGAN, *A good-looking seventeen-year-old young man is seated in the emergency room waiting room of a New York City hospital, Elmhurst General. He is wearing a pair of buckle back chinos; a white 'T-shirt; a pair of high-top white sneakers and white socks. Splotches of blood coven his pants, T-shirt, socks, and sneakers, and parts of his face and arms. He is shaking like a boy who cannot wake up from a nightmare he is having. He almost starts to cry. To distract himself, he picks up a* Life *magazine. No longer able to hold back the tears, he starts to cry, wiping his eyes and nose on his shirtsleeve.]*
[JACK LANDAU, *a thirty-something hot-shot criminal defense attorney, enters. He is dressed in a gray suit, a button-down shirt, and tie. He is carrying a soft brown leather attaché case.]*
[Hearing footsteps, BILLY, *still sniffing, covers his face with the magazine.]*

JACK: Billy Logan? *[Sniffing,* BILLY *picks up his head, and, again, goes to wipe his nose on his shirtsleeve.* JACK *whips out a pressed handkerchief and hands it to him.]*

JACK: *[Continuing.]* Here. Use a handkerchief.

BILLY: Thanks. [BILLY *blows his nose and tries to hand it back.]*

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JACK: Keep it. *[Cracks a joke.]* I'll put it on my bill. I'm Jack Landau, your attorney. Your father told me to meet you here.

BILLY: Is he coming?

JACK: I advised him against it. The father in him wanted to be here, but the Judge in him knows better.

BILLY: He must be so mad at me.

JACK: He's concerned that you're still in one piece.

BILLY: He told me not to talk to anybody.

JACK: You can talk to me. And whatever you say is strictly confidential.

BILLY: I mean, the whole thing was just an accident ...

JACK: Tell me what you told them.

BILLY: Told who?

JACK: The Admitting Office. The Doctor. Anyone that you spoke to.

BILLY: *[Lying.]* I told them the truth. That I lost control of the car and smashed into the side of a building. I was doing about forty when I jammed on the brakes and that's when Kathy practically flew through the windshield. Her whole body just crashed against the dashboard, and all of a sudden, she was bleeding, all over the place.

JACK: Any cops around? Pedestrians? Other moving cars?

BILLY: No.

JACK: ... Is that when you called your father?

BILLY: *[Lies.]* Yeah.

JACK: Where did you call him from?

BILLY: Uh, a pay phone ...

JACK: And how far away from the accident site was the phone?

BILLY: I don't remember. .. I was so confused.

JACK: And that's when you told your father you were taking her to Elmhurst

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General?

BILLY: I guess ...

JACK: And where exactly was the accident site?

BILLY: Around 108th Street ...

JACK: In Corona ... A lot of tenements there. Were there any people hanging around outside to cool off?

BILLY: ... If there were, I didn't see them ...

JACK: What were the two of you doing in Corona? It's a slum ...

BILLY: Uh, just cruising around ... There's a White Castle there ... on Northern Boulevard ...

JACK: There's a White Castle on Northern Boulevard in Douglaston, too, which is where you happen to live ... so why travel.. ..

BILLY: . We just wanted to ride around ...

JACK: And for no apparent reason, you lose control of the car, crash into a building, where not another soul hears you, and you walk out of the car without a scratch on you, while ... what's her name ...

BILLY: ... Kathy ... Her name is Kathy ...

JACK: ... While Kathy was, as you say, bleeding all over the place, you walked to a pay phone, took out a dime, and called your father instead of an ambulance.

BILLY: I was too scared to call an ambulance because I was drunk .... We, uh, drank a bottle of Seagrams.

JACK: So, she was drunk, too?

BILLY: . Yeah.

JACK: Did anyone here ask you why you didn't call an ambulance?

BILLY: … I think I told them I was only ten minutes away I don't remember what I told them, I was drunk, confused

JACK: Billy ... you don't sound like you were confused to me. Do you mean to tell me

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that after drinking a half a bottle of Seagrams, you still had the presence of mind to make a phone call, and then manage to get back into the car and drive ten minutes to this hospital while what's her name was still bleeding?

BILLY: Kathy ... Her name is Kathy ...

JACK: ... How did you even manage to get the car started if the crash was as bad as you said it was?

BILLY: It's a very heavy car ... A brand-new 1957 Ford Fairlane 500. My parents gave it to me for graduation. But, if you don't believe me, take a look at the car. It's right outside that door. It's a wreck.

JACK: I saw the car, Billy. That's my problem. You front ended the car into the building. The headlights are gone. The front fender is upended, and the passenger side windshield is shattered. Did her head go through the windshield?

BILLY: … I don't think so.

JACK: Then where the hell did that bucket of blood that is covering every inch of those white vinyl seats come from?

BILLY: I already told you ... she went flying against the dashboard! Her head hit the windshield ...

JACK: But did any of the glass hit an artery?

BILLY: *[More unnerved.]* I don't remember. .. !

JACK: Well, you better remember because it looks like that girl was butchered in that car. How did all of that blood get onto the back seats if she was sitting in the passenger seat? The amount of blood in the interior of the car is not commensurate with the exterior damage, which means, something happened in that car before the accident. ..

BILLY: Nothing happened in the car before the accident!

JACK: There was no accident, Billy, so let's stop the bullshit! You purposely took that

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car and crashed it three times into an abandoned tenement building in Corona. When the impact didn't do what you wanted it to do, you got out of the car, took a tire iron, and smashed the passenger seat windshield. There were two witnesses who saw you. Two guys were coming out of the Parkside Restaurant. They thought you were some lunatic so they called the Precinct and gave the Police your plate number. When the Precinct got the alert, the Captain, who thank God is a personal friend of your father, recognized the plate number, because he also happened to be at your graduation party when you got the god-damn car. He called your father right after you called your father with that bullshit story of the alleged accident. Billy, your Dad has had to pull some very serious strings to stop the usual wheels of the system from rolling. Look around you ... This is a city hospital. Do you see any cops here yet? Do you see anybody else in this room? All other ER traffic has been sent to Queens General. Your father is going to owe a lot of people a lot of favors. Now, you have got about five minutes before all hell breaks loose here. So once and for all, tell me the truth. What did you do to that girl?

BILLY: I got her pregnant.

JACK: *[Confused.]* Pregnant?

BILLY: The night of the Senior Prom at Holy Cross.

JACK: What does this have to do with ... ?

BILLY: That's how it all started ...

JACK: By getting her pregnant?

BILLY: She didn't even really want to. She was a virgin. And I told her, "If you love me, you'll let me." When it was over, she said I would think she was a slut now. In a million years I never thought she'd let me. We were gonna get married when I finished college. The next day we broke up. We couldn't even look at each other.

JACK: So, when did the girl tell you she was pregnant?

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BILLY: Kathy. Her name is Kathy. A week ago.

JACK: How pregnant was she?

BILLY: Two months ...

JACK: And what about after the Prom until a week ago? Did you have *any* contact with her?

BILLY: No.

JACK: Did she tell anybody else? Her parents?

BILLY: No. She was sure her father would throw her out of the house.

JACK: And did you tell anyone?

BILLY: Who would I tell? My Morn and Dad are so religious, if they were sailors, they'd have the Ten Commandments tattooed on their arms. I was too scared.

JACK: So, what did you do after she told you?

BILLY: I didn't know what to do. I offered to marry her but she still had another year of high school. What were we going to do with a baby? So, we both agreed to, to ...

JACK: Get rid of it ...

BILLY: Yeah ... So, I called a Buddy of mine, Joey Antonucci. His brother got his girlfriend pregnant before he got killed in Korea, so I asked him the name of, of, of ...

JACK: An abortionist.

BILLY: But he wouldn't talk to me on the phone. He made me meet him in the Loge Section of the RKO in Flushing. He sat down, offered me some buttered popcorn. I told him I needed the name for a friend. So, he hands me the napkin he wiped the butter off his mouth with, and tells me to slip it into my back pocket.

JACK: So, he gave you a name and number ... ?

BILLY: No name. Just a number on a napkin that there was so much butter on, I could hardly make it out.

JACK: And so you called the number ...

BILLY: Yeah.

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JACK: And then what?

BILLY: I made an appointment to meet this guy. He told me to bring an old sheet, a box of those things ... Kotex; and fifty dollars in cash. And, he said to let her drink a bottle of whiskey before we got there so she wouldn't feel any pain. But, she wasn't used to drinking ... by the time we got there, all she kept doing was throwing up. *[He starts to cry.]*

JACK: Come on, just tell me the rest, Billy.

BILLY: So, we meet this old guy on the second floor landing. The building was pitch black except for this flashlight he was carrying. His hand was shaking so much that the light from the flashlight was bouncing off the walls. I saw a rat this big running across the hall. I was ready to leave right then and there, but Kathy said no. The old guy takes what's left of the bottle of Seagrams and drinks it himself. Tells me to stay in the hall, ... not to worry ... he's done this a million times, he says ... Then he brought Kathy into this apartment and slammed the door.

JACK: So, you were never in the room while the crime was being committed?

BILLY: No, but I could hear her screaming through the door. Jesus Christ, I didn't know what to do. I was so scared.

JACK: ... And then what happened?

BILLY: She stopped screaming. I waited for five minutes and walked in. And that old drunken bastard was gone. He must've ran out of the fire escape window and Kathy, was on the floor, on the sheet, covered with blood. I never saw so much blood. I wanted to call an ambulance, but she said we'd both get arrested. That's when I got the idea to make it look like a car accident.

JACK: My God ... And then what?

BILLY: She couldn't walk cause she had these really bad cramps, so, I wrapped her in the sheet, carried her down the stairs and put her on the back seat of my car.

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JACK: And that's when you crashed your car into the tenement? Was the girl still conscious at that time?

BILLY: Jesus Christ, for the last time, her name *is* Kathy.

JACK: Wake up, Billy. Her name *was* Kathy. The girl is dead. She was dead when the attendants got her out of your car. Her parents are on their way here and they are going to want to know, "How did this happen?"

BILLY: *[Buries his head in his hands.]* I am sorry. I am so sorry ...

JACK: *[Puts an arm around Billy's shoulder to console him.]* "How the hell did this happen?"

SOURCE INFORMATION

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